

## 22NWCV00691 22NWCV00691

County: los-angeles

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Case Number: 22NWCV00691 Hearing Date: August 12, 2026 Dept: R

#19

MELENDEZ-RODRIGUEZ

v. CITISTAFF SOLUTIONS INC., ET AL.

CASE NO.: 22NWCV00691

HEARING: Wednesday, August  
12, 2026, at 9:30 AM

I.

Plaintiff ALBA

MELENDEZ-RODRIGUEZ's Motion to Compel Further Defendant CAMINO REAL FOODS, INC.'s Responses to Special Interrogatories, Set One is DENIED.

II.

Plaintiff ALBA

MELENDEZ-RODRIGUEZ's Motion to Compel Further Defendant CAMINO REAL FOODS, INC.'s Responses to Request for Production of Documents, Set One is DENIED.

III.

Plaintiff ALBA

MELENDEZ-RODRIGUEZ's Motion to Compel Further Defendant CITISTAFF SOLUTIONS INC.'s Responses to Special Interrogatories, Set One is DENIED.

IV.

Plaintiff ALBA

MELENDEZ-RODRIGUEZ's Motion to Compel Further Defendant CITISTAFF SOLUTIONS

INC.'s Responses to Request for Production of Documents, Set One is DENIED.

Moving Party(s) to give notice.

## BACKGROUND

On August 10, 2022, Plaintiff ALBA MELENDEZ-RODRIGUEZ ("Plaintiff") filed this Complaint against Defendants CITISTAFF SOLUTIONS INC. ("CITISTAFF"); CAMINO REAL FOODS, INC. (CAMINO); JOHN DOE; and DOES 1 through 50 inclusive. Plaintiff alleges that Defendant CITISTAFF engaged in a practice of gender-based harassment and discrimination. (Complaint ¶ 18.) Plaintiff further alleges her supervisor sexually harassed her. (Complaint ¶ 19.)

On March 4, 2026, the Court issued an Order regarding Plaintiff's Motions to Compel Further.

On May 20, 2026, the Court of Appeals issued an order directing the Court to vacate its March 4, 2026, order to the extent it compels production of sensitive tax, financial, or corporate information.

## MOTION TO COMPEL FURTHER

Plaintiff moves to compel Defendants CITISTAFF's and CAMINO's further responses to (1) Special Interrogatories, Set One; and (2) Request for Production of Documents, Set One.

On December 17, 2025, the Court ordered the parties to meet and confer. The Court ordered the parties to submit a joint statement outlining the remaining discovery issues. The parties filed a joint statement on February 6, 2026.

## Production of Documents Set, One

In responding to a demand for production of documents, a party must provide one of the following: (1) a legally adequate statement of compliance; (2) a statement of inability to comply; or (3) an objection to the particular demand. (See CCP § 2031.210(a); § 2031.220 [requirements for partial compliance with production demand]; § 2031.230 [statement of inability to comply must include reason why].) If any objections are made, they must: (1) "[i]dentify with particularity any

document ... falling within any category of item in the demand to which an objection is being made"; and (2) "[s]et forth clearly the extent of, and the specific ground for, the objection." (Id., § 2031.240(b).)

To prevail, a party moving for an order compelling further responses to a document production demand must first offer specific facts demonstrating "good cause justifying the discovery sought by the demand." (CCP § 2031.310(b)(1).) This burden "is met simply by a fact-specific showing of relevance." (TBG Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448.) If "good cause" is shown by the moving party, the burden shifts to the responding party to justify any objections made to document disclosure. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.)

As a preliminary matter, much of Plaintiff's requests are to support alter ego allegations. Among the factors considered for alter ego are: 1) commingling of funds and other assets of the two entities, 2) the holding out by one entity that it is liable for the debts of the other, 3) identical equitable ownership in the two entities, 4) use of the same offices and employees, 5) use of one as a mere shell or conduit for the affairs of the other, 6) inadequate capitalization, 7) disregard of corporate formalities, 8) lack of segregation of corporate records, and identical directors and officers. Sonora Diamond Corps. v. Sup. Ct. (2000) 83 Cal. App. 4th 523, 538-539.

## Privacy

Much of Plaintiff's request also pertain to sensitive tax, financial, or corporate information.

In Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, the California Supreme Court engaged in an extensive discussion of the right to privacy and established the following test to assert a violation of that right: (1) the party possesses a "legally protected privacy interest," (2) the party possesses a reasonable expectation of privacy under the circumstances, and (3) the invasion of privacy complained of is "sufficiently serious in nature, scope, and actual or potential impact to constitute an egregious breach of the social norms underlying the privacy right." (Id. at 35-37 [emphasis added].)

In Williams v. Superior Court (2017)

3 Cal.5th 531, 553, the Supreme Court relied on the Hill framework to address a discovery issue in a Private Attorney General Action, stating that “the party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious.” (Id. at 552.) Once the Hill criteria are met, a court must still balance the “countervailing interest the opposing party identifies” in determining whether or not to allow discovery. (Id. at 557.) If the court does allow discovery, it may, of course, limit the discovery to properly balance the interests at issue. (See Board of Trustees of Leland Stanford Jr. Univ. v Superior Court (1982) 119 Cal.App.3d 516, 526 (“courts should impose partial limitations rather than outright denial of discovery.”))

“[C]orporations do not have a right of privacy protected by the California Constitution.” (SCC Acquisitions, Inc. v. Superior Court (2015) 243 Cal.App.4th 741, 755.) Article I, section 1 of the California Constitution protects the rights of people and thus do not apply to corporations. (Id. at 755-56.) “While corporations do have a right to privacy, it is not a constitutional right.” (Id. at 756.) “The corporate right to privacy is a lesser right than that held by human beings and is not considered a fundamental right.” (Id.) Because the corporate privacy right is not constitutionally protected, whether a discovery request infringes that right is resolved by balancing the discovery’s relevance to the subject matter of the pending dispute and whether the discovery appears reasonably calculated to lead to the discovery of admissible evidence against the corporate right of privacy. (Id.) “Doubts about relevance generally are resolved in favor of permitting discovery.” (Id.)

Defendant Camino Real Foods, Inc.

Requests Nos. 1, 14, 15, 17, 20, 23, 24, 27

Camino Real agreed to provide supplemental responses to these requests. (Opposition Ex. B at p. 9.)

Requests Nos. 2-13, 21-23, 25-26, 28-29

Plaintiff's requests seek corporate formation information and request bylaws, evidence of maintaining minutes, corporate records, evidence of shares issued, evidence of adequate capitalization, and stock ownership.

In applying Hill's privacy balancing framework, the Court first examines whether there is a legally protected privacy interest.

First, the Court notes that Camino has not identified a legally protected privacy interest. Moreover, as noted above, "[C]orporations do not have a right of privacy protected by the California Constitution." (SCC Acquisitions, Inc. v. Superior Court (2015) 243 Cal.App.4th 741, 755.) Thus, the question turns to whether the discovery is relevant to the subject matter of the pending dispute and whether the discovery appears reasonably calculated to lead to the discovery of admissible evidence against the corporate right of privacy. (Id.)

Plaintiff contends these requests are relevant to establish joint liability/an alter ego relationship between the entity Defendants. In doing so, Plaintiff relies on an email sent from Maria Pena, Camino's Human Resources Manager, to Citistaff in which she states she, "would like to review with upper management to finalize his return." (Tojo Decl., ¶ 13, Ex. I.) Plaintiff argues therefore there is good cause of investigate claims of alter ego and joint employment between Citistaff and Camino.

The Court is unconvinced the Subject discovery is relevant and instead finds that the overbroad discovery request(s) infringe on Camino's corporate right to privacy.

The Court finds that Plaintiff's only evidence in support of alter ego liability is an email from Ms. Pena regarding Mr. Reyes' potential return. This is insufficient to justify further alter ego discovery. Defendants have produced a Staffing Agreement and corporate formation documents, including Articles of Incorporation and Statements of Information, which demonstrate that Citistaff Solutions Inc. and Camino Real Foods, Inc. are separate and independent entities. Plaintiff has not presented any evidence of

commingling of funds, disregard of corporate formalities, or shared ownership/management.

Accordingly, the Court finds that Plaintiff's speculative assertion of alter ego liability does not warrant further discovery into Defendants' sensitive corporate or financial records.

Plaintiff's Motion to Compel Further Responses to Request for Production, Set One is DENIED.

Defendant Citistaff Solutions Inc.

Requests Nos. 1, 3, 8-10, 23-30

Defendant Citistaff agreed to supplement responses to these requests.

Requests Nos. 2, 4-7, 11, 13, 15

These requests seek corporate formation information and request bylaws, evidence of maintaining minutes, corporate records, evidence of shares issued, evidence of adequate capitalization, and stock ownership.

Similar to above, the Court does not find Plaintiff established good cause for this discovery. The Court finds that Plaintiff's speculative assertion of alter ego liability does not warrant further discovery into Defendants' sensitive corporate or financial records.

Requests No. 12

Request 12 seeks, "All DOCUMENTS evidencing YOU had sufficient assets available to meet it's liabilities from January 1, 2021, to the present." The Court does not find this request to be relevant to Plaintiff's employment claims.

Request Nos. 14, 17, 20

Request 14 seeks evidence of Defendant's current and former owners. Request 17 seeks K-1s for all individual members and 20 seeks

financial statements from January 1, 2021, to present.

Plaintiff's request infringes upon sensitive corporate and financial records. As established above, Plaintiff's speculative assertion of alter ego liability does not warrant further discovery into Defendants' sensitive corporate or financial records.

Indeed, even if Plaintiff could establish need for further alter ego discovery, documents concerning K-1s for individual members and all financial statements infringes on individual's right to privacy. K-1s for individual members is simply not relevant. Moreover, attempting to obtain all financial statements from Citistaff is unduly burdensome.

Plaintiff's Motion to Compel Further Responses to Requests for Production, Set One is DENIED.

Special Interrogatories (SI), Set One

Defendant Camino Real Foods, Inc.

SI Nos. 55-59

Camino agreed to supplement responses to these requests.

SI Nos. 2-47, 53-54

These Special Interrogatories seek (1) evidence related to Defendant's shareholders, including number of shares and consideration paid for shares; (2) evidence related to Defendant's issuance of stock, including transfer of stock; (3) whether Defendant has maintained a share certificate; and (4) evidence related to Defendant's profits, including net profit, gross income, present assets, and present liabilities; (5) evidence about Defendant's current officers and directors; (6) evidence about Defendant's incorporation and incorporation documents; (3) evidence on board meetings; and (7) evidence on corporate bookkeeping.

These special interrogatories all seek information that would be related to a potential alter ego claim. However, as established above, Plaintiff has not made a showing that there is good cause for further

alter ego discovery.

Moreover, Plaintiff's speculative assertion of alter ego liability does not warrant further discovery into Defendants' sensitive corporate or financial records.

Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One is DENIED.

Defendant CitiStaff Solutions Inc.

SI Nos. 17, 24, 55-59

Citistaff agreed to supplement further responses to these requests.

SI Nos. 2-4, 6-16, 18-23, 25-47, 53-54

Based on the foregoing, Plaintiff's Motion to Compel Further Responses to these Special Interrogatories is DENIED.

#### MONETARY SANCTIONS

Plaintiff's request for sanctions is DENIED.

Defendants' request for sanctions is DENIED. The Court finds Plaintiff acted with substantial justification to bring the instant motions to compel.

#### CONCLUSION

Plaintiff's Motion to Compel Defendant Camino Real Foods, Inc.'s and Citistaff Solutions, Inc.'s Further Responses to Request for Production of Documents is DENIED.

Plaintiff's Motion to Compel Defendant Camino Real Food, Inc.'s Further Responses to Special Interrogatories is DENIED.

Plaintiff's Motion to Compel Defendant Citistaff Solutions, Inc.'s Further Responses to Special Interrogatories is DENIED.